

Dharvendra Kumar v. Dakshinanchal Vidyut Vitran Khand

High Court of Judicature at Allahabad · Division Bench · 16 July 2021 · Writ-C No. 13419 of 2021 · Writ-C No. 13419 of 2021 · **Writ dismissed; relegated to Section 127 appeal against final theft assessment.**

HEADNOTE

A Division Bench of the Allahabad High Court dismissed a writ challenging a 16 January 2021 final theft assessment of Dakshinanchal Vidyut Vitran Khand. The consumer alleged denial of hearing; the assessment recorded that his reply had been considered and, finding no plausible explanation, made the provisional assessment final. The Court declined to entertain the petition because a statutory appeal lay under Section 127 of the Electricity Act, 2003 read with clauses 8.1 and 8.2 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Dharvendra Kumar invoked the Allahabad High Court's writ jurisdiction against Dakshinanchal Vidyut Vitran Khand and two others, challenging a final assessment order dated 16 January 2021 in a theft-of-electricity matter. He alleged that he had not been given due opportunity of hearing. The Executive Engineer/Prescribed Authority recorded that the consumer's reply was considered and, finding no plausible explanation, made the provisional assessment final. After a 29 June 2021 listing as fresh, the Division Bench heard counsel on both sides on 16 July 2021.

HOLDING-UNITS

INTERPLAY · EA2003::127

alternative remedy against final theft assessment

HOLDING

A writ challenging a final theft assessment on alleged denial of hearing will not be entertained where the assessment records that the consumer's reply was considered and the provisional assessment was made final; the consumer has a statutory appeal under Section 127 of the Electricity Act, 2003 read with clauses 8.1 and 8.2 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 Writ against a final theft assessment dismissed because a Section 127 appeal, read with Supply Code clauses 8.1 and 8.2, was available. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal The 16 January 2021 order making the provisional theft assessment final was treated as appealable under Section 127, so the writ was not entertained. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER DUE OPPORTUNITY OF HEARING WAS IN FACT DENIED BEFORE THE FINAL THEFT ASSESSMENT.

The Court noted that the assessment recorded consideration of the consumer's reply, but did not decide the natural-justice challenge on merits. ¶ 1

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE THEFT ASSESSMENT.

Left to the statutory appeal under Section 127 read with clauses 8.1 and 8.2. ¶ 1

